

26STCV05177 26STCV05177

County: los-angeles

Division: Civil Law and Motion

Department: 510

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Case Number: 26STCV05177 Hearing Date: August 4, 2026 Dept: 510

No. 10 - Adrian Patterson, et al. v.

City of Los Angeles

Defendant City of Los

Angeles's Demurrer to Plaintiffs' Complaint

Defendant City of Los

Angeles demurs to Plaintiffs Adrian Patterson and Dilon Dupree Chaney's complaint wherein Plaintiffs allege causes of action for dangerous condition of public property and negligent infliction of emotional distress. Plaintiffs did not file an opposition.

Request for Judicial Notice

Defendant

requests the Court take judicial notice of Plaintiff Chaney's claim for damages and its subsequent denial of that claim. These documents are subject to judicial notice under Evidence Code section 452(c).

Defendant

also requests the Court take judicial notice of the complaint in this action. This is a court record and subject to judicial notice under Evidence Code section 452(d).

Defendant's

requests for judicial notice are granted.

Statute of Limitations

Defendant

argues that the entire action is time-barred as to Plaintiff Dilon Dupree Chaney for failure to comply with the Government Claims Act. Government Code section 945.4 provides, in relevant part, “no suit for money or damages may be brought against a public entity on a cause of action for which a claim is required to be presented in accordance with Chapter 1 (commencing with Section 900) and Chapter 2 (commencing with Section 910) of Part 3 of this division until a written claim therefor has been presented to the public entity and has been acted upon by the board, or has been deemed to have been rejected by the board.” After a claim subject to the Government Claim Act has been presented to the board, suit must be commenced within six months of notice that the claim was rejected or within two years from the accrual of the cause of action if notice of rejection is not given. (Gov. Code, §§ 913, 945.6(a).)

Here, Defendant presents

judicially noticeable evidence showing Plaintiff Chaney presented his claim for damages on April 29, 2025 for an incident that allegedly occurred on April 2, 2025. (RJN, Ex. A.) Defendant further presents evidence that it denied Chaney’s claim on May 22, 2025, and provided him with notice of the denial that same day. (RJN, Ex. B.) The notice advised Chaney that he had 6 months to file a court action. (Ibid.) However, Plaintiffs initiated this case on February 19, 2026, more than 8 months after the City’s notice of denial. Therefore, Plaintiff Chaney’s claims are time-barred under Government Code section 945.6(a)(1).

Because

similar evidence was not presented showing Plaintiff Patterson’s claims are time-barred, the Court will analyze Defendant’s other arguments attacking the sufficiency of allegations in the complaint.

Sufficiency of Allegations

Defendant argues that Plaintiffs’

second cause of action for negligent infliction of emotional distress fails.

The Court agrees. “[A]ll government tort liability must be based on statute.” (County of San Bernardino v. Superior Court (2022) 77 Cal.App.5th 1100, 1107.) “ [S]overeign immunity is the rule in California; governmental liability is limited to exceptions specifically set forth by statute.’ ” (Id. at p. 1108.) Because the City of Los Angeles is a public entity, Plaintiffs must provide a statutory basis for liability. They

did not do so here. The second cause of action does not state sufficient facts to constitute a viable cause of action.

Disposition

Defendant City of Los

Angeles's demurrer as to Plaintiff Dilon Dupree Chaney's first and second causes of action is sustained without leave to amend.

Defendant City of Los

Angeles's demurrer as to Plaintiff Adrian Patterson's second cause of action for negligent infliction of emotional distress is sustained without leave to amend.